

GNIOT Institute of Management Studies – PGDM (Batch 2022-24)**(TRIMESTER –IV) END TERM EXAMINATION, OCTOBER-2023****Legal Aspects in Supply Chain Management****[Time: 2 Hours 30 Minutes]****[Maximum Marks: 70]**

[**BL** – Bloom's Taxonomy Levels (1- Remembering, 2- Understanding, 3 – Applying, 4 – Analysing, 5 – Evaluating, 6 - Creating)
CO – Course Outcomes]

Following are the course outcomes of the subject: - Legal Aspects in Supply Chain Management

CO1	To study the importance of Indian contract act, rights and duties involved in shipping and maritime Law
CO2	To impart the knowledge on Indian sale of goods act
CO3	To create the knowledge of legal perspective and its practices to improve the business in shipping and maritime.
CO4	To Monitor and evaluate developments in legal aspects that affect sourcing decisions, explaining the implications to colleagues and other internal stakeholders

*(Note- Faculty can add the more CO's as per their subject.)***SECTION-A****Attempt all parts of the following: (Short Answer Type Questions, do not exceed 200 words)**

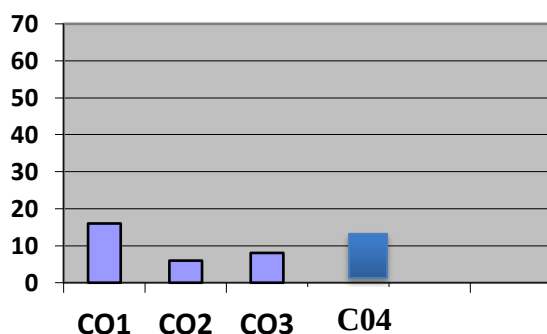
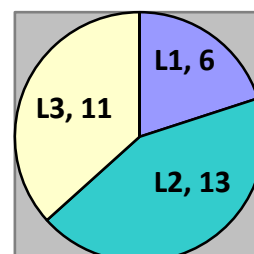
Q.1	Marks	CO	BL
A	4	CO – 1	L -
B	4	CO – 2	L –
C	4	CO – 3	L –
D	4	CO – 1	L –
E	4	CO – 2	L -

SECTION-B**Attempt any 3 questions out of the following:****(Long Answer Type Questions)**

Q. No	Marks	CO	BL
2 (A)	8	CO - 1	L -
2 (A)	8	CO – 1	L -
2 (B)	8	CO – 1	L -
2 (B)	8	CO – 3	L -
3 (A)	8	CO – 2	L -
3 (A)	8	CO – 4	L -
3 (B)	8	CO – 4	L -
3 (B)	8	CO -4	L -

SECTION-C**Attempt all parts of the following: (Caselet / Numerical)**

Question	Marks	CO	BL
4 (A)	9	CO –2	L -
4 (B)	9	CO – 2	L -

Course Outcome Wise Marks Distribution**Bloom's Level wise Marks Distribution****Bloom's Level wise Marks Distribution**

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GNIOT Institute of Management Studies – PGDM (Batch 2022-24)

(TRIMESTER – IV) END TERM EXAMINATION, OCTOBER - 2023

Legal Aspects in Supply Chain Management

[Time: 2 Hours 30 Minutes]

[Maximum Marks: 70]

INSTRUCTIONS:

- (i) There are **THREE** sections in this question paper.
- (ii) Attempt questions from each section as per the directions.
- (iii) Make suitable assumptions wherever necessary.

SECTION-A

(Short Answer Type Questions, do not exceed 200 words)

Q.1. Attempt all parts of the following:

(5×4=20)

- (a) Define the relationship of a principal and an agent in a contract of agency.
- (b) Define Goods along with types of goods and examples.
- (c) Define the remedies available to an aggrieved party in case of a breach of a contract.
- (d) Define “Undue Influence” along with an example where undue influence has been used to acquire assent.
- (e) Define “Doctrine of Caveat Emptor” along with the duties of a Buyer.

SECTION-B

(Long Answer Type Questions)

Q.2. Attempt all questions of the following

(4×8=32)

(a) What is the effect of a performance of a contract? How does performance of a contract can discharges a contract.

OR

(a) All contracts are agreements but all agreements are not contract. Describe the essential elements for a valid contract.

(b) Describe in detail the different sources of Law.

OR

(b) Define offer and explain in detail how an offer/proposal becomes a contract.

Q.3. (a) Define a Non – Disclosure Agreement along with the important aspects that are covered in a Non-Disclosure Agreement.

OR

(a) What are the main objectives of Competition Act, 2002?

(b) What are the general powers of the Central Government under the Environment Protection Act 1986?

OR

(b) What are the salient features of FEMA that replaced the FERA for regulation of Foreign Exchange Markets?

SECTION-C

Q.4. Attempt all parts of the following:

(2×9=18)

Mr. Ram Acharya was selected for a post of Senior Product Manager in M/s ABC Pvt. Ltd. (an FMCG) was asked to signed an employment agreement as well as an a non-disclosure agreement as the FMCG deals with procurement of certain raw materials from special vendors. The company in both the agreements in detail lays down the duties that Mr. Ram Acharya has to undertake to take this employment.

- 4(a)** Draft an employment agreement signed by the employee herein and the representative of the Employer herein giving all the relevant details of the job post.
- 4(b)** what do you understand by the term “trade secrets”. Why is it necessary for the employee to guard these trade secrets?